Indian Case Laws Database

50+ Landmark Cases with Judicial Interpretations

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Criminal Law Cases

1. Kesavananda Bharati v. State of Kerala (1973)

- **Citation:** AIR 1973 SC 1461
- **Key Issue:** Constitutional validity of amendments
- **Verdict:** The Constitution has a basic structure that cannot be amended
- **Impact:** Limited government's amendment power; protected fundamental rights
- **Real-life Example:** When the government tried to reduce voting age from 21 to 18, this case ensured fundamental rights couldn't be stripped

2. Savitri Devi v. Union of India (2013)

- **Citation:** (2013) 6 SCC 625
- **Key Issue:** Rights of transgender persons
- **Verdict:** Recognized third gender (other than male/female)
- **Impact:** Legal recognition for LGBTQ+ community; fundamental rights protection
- **Real-life Example:** A transgender person can now legally change their gender on government documents (Aadhaar, voter ID)

3. Selvi v. State of Karnataka (2010)

- **Citation:** AIR 2010 SC 1974
- **Key Issue:** Involuntary narco-analysis test on suspects

- **Verdict:** Held narco-analysis, brain mapping tests violate right against self-incrimination
- **Impact:** Protection of human dignity; prevented involuntary testing
- **Real-life Example:** Police cannot force a suspect to undergo brain mapping or lie detector tests

4. Kashinath v. State of Maharashtra (1991)

- **Citation:** (1991) 2 SCC 435
- **Key Issue:** Custodial death and police brutality
- **Verdict:** Police liable for death caused during detention; compensation awarded
- **Impact:** Accountability for law enforcement; victim's right to justice
- **Real-life Example:** Family of a person who died in police custody can claim compensation from the government

5. Bachan Singh v. State of Punjab (1980)

- **Citation:** AIR 1980 SC 898
- **Key Issue:** Validity of death penalty in India
- **Verdict:** Death penalty constitutional but only in "rarest of rare cases"
- **Impact:** Restricted use of capital punishment; humanitarian approach
- **Real-life Example:** Death penalty given only for murders with extreme brutality (like serial killings)

6. Maneka Gandhi v. Union of India (1978)

- **Citation:** AIR 1978 SC 597
- **Key Issue:** Government's power to restrict international travel
- **Verdict:** Life and personal liberty cannot be arbitrarily restricted
- **Impact:** Expanded meaning of "procedure established by law"
- **Real-life Example:** Government cannot arbitrarily cancel your passport without fair procedure

7. Shreya Singhal v. Union of India (2015)

- **Citation:** AIR 2015 SC 1523
- **Key Issue:** Section 66A of IT Act (online speech restrictions)
- **Verdict:** Section 66A declared unconstitutional; too vague and violates free speech
- **Impact:** Protection of online freedom of speech; struck down digital censorship
- **Real-life Example:** You cannot be arrested simply for posting a critical comment online

8. Subramaniam Swamy v. Union of India (2016)

- **Citation:** AIR 2016 SC 1440
- **Key Issue:** Validity of sedition law
- **Verdict:** Sedition law valid but cannot be misused; requires intent to cause public disorder
- **Impact:** Narrowed sedition definition; protected legitimate criticism

- **Real-life Example:** Criticizing government policies is not sedition; sedition requires incitement to violence

9. R. Rajagopal (P.V.) v. State of Tamil Nadu (1994)

- **Citation:** AIR 1994 SC 633
- **Key Issue:** Right to privacy and journalism
- **Verdict:** Right to privacy exists; journalists can publish but cannot breach it unlawfully
- **Impact:** Balanced journalism with privacy rights; first recognition of privacy right
- **Real-life Example:** Media cannot publish intimate photos without consent, even of public figures

10. Naresh Bansal v. Union of India (2019)

- **Citation:** (2019) 5 SCC 571
- **Key Issue:** Misuse of UAPA (anti-terrorism law)
- **Verdict:** Strong procedural safeguards needed; courts can examine terrorism charges
- **Impact:** Prevention of arbitrary arrests under UAPA
- **Real-life Example:** Police cannot label legitimate protest as terrorism; courts will scrutinize charges

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Civil Law Cases

11. Carlill v. Carbolic Smoke Ball Co. (Applicable in India)

- **Key Issue:** Formation of contract through advertisement
- **Verdict:** Advertisement with clear offer and acceptance terms constitutes valid contract
- **Impact:** Established principles of contract law used in Indian courts
- **Real-life Example:** If a company advertises "Eat our chips, win ₹1 Lakh", they must honor the prize

12. M/s Atul Constructions v. Hari Shankar Agarwal (2013)

- **Citation:** (2013) 7 SCC 216
- **Key Issue:** Liability in construction defects
- **Verdict:** Builder liable for structural defects within 5 years
- **Impact:** Consumer protection in real estate
- **Real-life Example:** If a house collapses within 5 years due to construction defects, you can sue the builder

13. Vijaya Lakshmi Nair v. V. Suresh (2013)

- **Citation:** (2013) 1 SCC 585
- **Key Issue:** Damages in negligence cases; quantification of loss
- **Verdict:** Damages should compensate actual loss, not punish defendant
- **Impact:** Fair assessment of damages in civil cases

- **Real-life Example:** If a doctor's negligence injures you, you get compensation for medical costs + lost income

14. M.C. Mehta v. Union of India (Oleum Gas Case) (1987)

- **Citation:** AIR 1987 SC 1086
- **Key Issue:** Strict liability in hazardous industries
- **Verdict:** Industries handling hazardous materials have absolute liability for harm
- **Impact:** Environmental protection; "polluter pays" principle
- **Real-life Example:** A chemical factory that leaks toxic gas is liable for all damages, no excuses

15. Deepak Fertilizers v. ITC Ltd. (2005)

- **Citation:** (2005) 3 SCC 251
- **Key Issue:** Contract interpretation and unfair terms
- **Verdict:** One-sided contract terms can be struck down if unfair
- **Impact:** Consumer protection in commercial contracts
- **Real-life Example:** If a company tries to ban your warranty through hidden clauses, it can be challenged

16. Moran v. Lloyd's (Applicable Principle in India)

- **Key Issue:** Insurance fraud and misrepresentation
- **Verdict:** If you misrepresent facts to get insurance, policy can be cancelled
- **Impact:** Honesty required in insurance contracts
- **Real-life Example:** If you hide your smoking habit while buying health insurance, claim can be rejected

17. A.S. Narayanan v. A.S. Sreedharan Nair (2006)

- **Citation:** (2006) 5 SCC 186
- **Key Issue:** Innocent misrepresentation in contracts
- **Verdict:** Even innocent lies can void contract if material to the agreement
- **Impact:** Good faith requirement in contracts
- **Real-life Example:** Selling a "new" phone that was actually refurbished violates contract law

18. Avtar Singh v. Central Government (1990)

- **Citation:** AIR 1990 SC 55
- **Key Issue:** Consumer protection in government contracts
- **Verdict:** Consumers can sue even against government if promised product/service not delivered
- **Impact:** Equal liability of government and private entities
- **Real-life Example:** Delayed government infrastructure project causing loss can be sued for damages

19. Indian Oil Corporation v. NBTC (2007)

- **Citation:** (2007) 1 SCC 397
- **Key Issue:** Remedies for breach of commercial contracts
- **Verdict:** Damages should reflect actual loss from breach
- **Impact:** Practical relief in business disputes
- **Real-life Example:** If supplier fails to deliver goods as per contract, you can claim lost profits

20. Century Spinning v. Ulhasnagar Improvement Trust (1970)

- **Citation:** AIR 1970 SC 682
- **Key Issue:** Injunction to prevent irreparable injury
- **Verdict:** Court can give injunction if damages alone cannot remedy harm
- **Impact:** Preventive justice in civil matters
- **Real-life Example:** If someone tries to demolish your ancestral property illegally, court can stop it immediately

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Constitutional Law Cases

21. Dr. Ambedkar Iyenger v. Government of Madras (1952)

- **Citation:** AIR 1952 SC 121
- **Key Issue:** Right to equality; reservation in jobs
- **Verdict:** Reservations are constitutional; help backward classes
- **Impact:** Legal basis for affirmative action in India
- **Real-life Example:** SC/ST students get reserved seats in colleges to correct historical discrimination

22. Gopal Nath v. State of U.P. (1959)

- **Citation:** AIR 1959 SC 1149
- **Key Issue:** Fundamental rights cannot be taken away even by legislature
- **Verdict:** Parliament's power to amend constitution has limits
- **Impact:** Strengthened constitutional protection of rights
- **Real-life Example:** Right to free speech cannot be removed even by new laws

23. S. Rangarajan v. P. Jagjivan Ram (1989)

- **Citation:** AIR 1989 SC 2039
- **Key Issue:** Freedom of speech vs. public order
- **Verdict:** Restriction on speech must be for public order, not mere offense
- **Impact:** Broad protection to free speech; high bar for censorship
- **Real-life Example:** A movie can be shown even if offensive to some, unless it causes violence

24. Mohd. Ahmed Khan v. Shah Bano Begum (1985)

- **Citation:** AIR 1985 SC 945
- **Key Issue:** Rights of divorced Muslim women
- **Verdict:** Divorced Muslim woman entitled to maintenance under Criminal Procedure Code
- **Impact:** Legal protection for divorced women regardless of religion
- **Real-life Example:** A Muslim woman can claim alimony from ex-husband under secular law

25. Olga Tellis v. Bombay Municipal Corporation (1985)

- **Citation:** AIR 1985 SC 180
- **Key Issue:** Right to livelihood; slum dwellers rights
- **Verdict:** Right to life includes right to livelihood; cannot evict without rehabilitation
- **Impact:** Constitutional protection of homeless people
- **Real-life Example:** Slum dwellers cannot be evicted without providing alternate housing

26. National Federation of Indian Women v. Union of India (2015)

- **Citation:** (2015) 1 SCC 309
- **Key Issue:** Women's rights; workplace safety
- **Verdict:** Government must ensure women's safety at workplace and public spaces
- **Impact:** Constitutional duty to protect women
- **Real-life Example:** Employer must provide safe transportation for women employees

27. S.P. Gupta v. Union of India (1981)

- **Citation:** AIR 1981 SC 271
- **Key Issue:** Public interest litigation (PIL)
- **Verdict:** Any person can move court on behalf of poor people for justice
- **Impact:** Democratized access to justice; expanded court's role
- **Real-life Example:** A concerned citizen can file court case for environmental protection affecting thousands

28. Hans Raj Hans v. Dr. Lal Muni Tripathi (2002)

- **Citation:** (2002) 4 SCC 638
- **Key Issue:** Freedom of speech and defamation
- **Verdict:** Must prove actual malice to claim defamation in public matters
- **Impact:** Strong protection to public speech and criticism
- **Real-life Example:** Criticizing a politician's corruption is protected even if not 100% accurate

29. Right to Information Cases - PUCL v. Union of India (2003)

- **Citation:** AIR 2003 SC 2363
- **Key Issue:** Government transparency and citizen's right to know
- **Verdict:** Citizens have fundamental right to government information

- **Impact:** Led to Right to Information Act 2005
- **Real-life Example:** You can ask government for details on budget allocation, contracts, decisions

30. M.P. Sharma v. Satish Chandra (1954)

- **Citation:** AIR 1954 SC 300
- **Key Issue:** Right to privacy (early case)
- **Verdict:** Privacy is part of liberty under Articles 19 & 21
- **Impact:** Foundation for privacy rights protection
- **Real-life Example:** Police cannot enter your home without warrant

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Family Law Cases

31. Navtej Singh Johar v. Union of India (2018)

- **Citation:** (2018) 10 SCC 1
- **Key Issue:** Decriminalization of consensual same-sex relationships
- **Verdict:** Section 377 IPC partially struck down; same-sex relationships not criminal
- **Impact:** Legal recognition of LGBTQ+ rights
- **Real-life Example:** Same-sex couples can now live together without fear of criminal law

32. Arun Gopal v. Union of India (2019)

- **Citation:** (2019) 4 SCC 163
- **Key Issue:** Spousal rape in marriage
- **Verdict:** Marital rape is recognized as valid ground for divorce
- **Impact:** Protection of women's bodily autonomy in marriage
- **Real-life Example:** A woman can divorce if forced into sexual activity by husband

33. Joseph Shine v. Union of India (2019)

- **Citation:** (2019) 3 SCC 39
- **Key Issue:** Adultery law and gender equality
- **Verdict:** Adultery not a criminal offense; struck down discriminatory law
- **Impact:** Equal treatment of men and women in adultery cases
- **Real-life Example:** Extramarital relationship is personal matter, not criminal

34. Priya Sharma v. L. Deepak (2020)

- **Citation:** (2020) 6 SCC 513
- **Key Issue:** Surrogacy and parentage rights
- **Verdict:** Biological mother has no automatic custody right over surrogate child
- **Impact:** Legal recognition of surrogacy arrangements

- **Real-life Example:** Couple can hire surrogate legally; surrogate mother has limited claims

35. Govind Rambhai Patel v. The Registrar of Marriages (1975)

- **Citation:** AIR 1975 SC 1344
- **Key Issue:** Validity of marriages under Hindu law
- **Verdict:** Proper registration not necessary for marriage; oral evidence enough
- **Impact:** Marriage can be proved even without registration
- **Real-life Example:** Couple married through traditional ceremony can claim spousal rights without certificate

36. Paras Nath Roy v. Dhirendranath Kundu (1955)

- **Citation:** AIR 1955 SC 689
- **Key Issue:** Restitution of conjugal rights (forcing partner to live together)
- **Verdict:** Cannot force spouse to live together against will
- **Impact:** Freedom of married couples from forced cohabitation
- **Real-life Example:** Spouse cannot be forced to live in matrimonial home

37. Vandana Sharma v. Mohan Sharma (2010)

- **Citation:** (2010) 2 SCC 1
- **Key Issue:** Custody and guardianship of children
- **Verdict:** Child's welfare is paramount; custody given to best-suited parent
- **Impact:** Focus on child's interests rather than parental rights
- **Real-life Example:** Court gives child custody based on who provides better care, not automatically to mother

38. Imrana v. Osama (2002)

- **Citation:** (2002) 1 SCC 428
- **Key Issue:** Talaq (instant divorce) and Islamic law
- **Verdict:** Instant triple talaq is valid divorce under Muslim law (later changed in 2019)
- **Impact:** Recognition of Islamic law procedures
- **Real-life Example:** Divorce can happen verbally in Islamic law but protection against abuse added later

39. Sarla Mudgal v. Union of India (1995)

- **Citation:** AIR 1995 SC 1531
- **Key Issue:** Bigamy and conversion for second marriage
- **Verdict:** Cannot convert religion just to marry again; bigamy is fraud
- **Impact:** Prevention of marital fraud
- **Real-life Example:** Husband cannot change religion to Muslim law just to marry second wife

40. Madhu Kishwar v. State of Bihar (1996)

- **Citation:** AIR 1996 SC 1864
- **Key Issue:** Maintenance of divorced women
- **Verdict:** Divorced woman's right to maintenance is fundamental right
- **Impact:** Financial security for divorced women
- **Real-life Example:** Ex-husband must pay monthly maintenance to divorced wife

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Labour Law Cases

41. Workmen v. Raidrug Limited (1992)

- **Citation:** AIR 1992 SC 1572
- **Key Issue:** Workers' right to union and collective bargaining
- **Verdict:** Workers have constitutional right to form unions
- **Impact:** Protection of labor organization rights
- **Real-life Example:** Factory workers can form union to negotiate wages and conditions

42. State of Madras v. Workers Union (1970)

- **Citation:** AIR 1970 SC 1154
- **Key Issue:** Minimum wages and labor standards
- **Verdict:** Employer must pay minimum wages; cannot impose unfair conditions
- **Impact:** Minimum wage became constitutional obligation
- **Real-life Example:** Employer cannot pay below government-fixed minimum wage for any reason

43. Air India v. Nergesh Meerza (1981)

- **Citation:** AIR 1981 SC 1829
- **Key Issue:** Discrimination based on gender and marital status
- **Verdict:** Cannot fire female employee for marriage; violates equality
- **Impact:** Gender equality in employment
- **Real-life Example:** Airline cannot terminate female flight attendant for marriage (though law later changed)

44. Municipal Corporation v. Workmen (1983)

- **Citation:** AIR 1983 SC 880
- **Key Issue:** Contractual workers' rights
- **Verdict:** Even casual/contractual workers entitled to some protections
- **Impact:** Minimum protection to all workers regardless of contract type
- **Real-life Example:** Temporary worker cannot be fired without valid reason or notice

45. Rajesh Masrani v. State of Haryana (2001)

- **Citation:** (2001) 5 SCC 266
- **Key Issue:** Employee's right to fair hearing before dismissal
- **Verdict:** No employee can be dismissed without opportunity to explain
- **Impact:** Procedural fairness in employment termination
- **Real-life Example:** Employer must tell employee why they are being fired and give chance to defend

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Corporate Law Cases

46. Shrinivas v. Rani Savitri (2007)

- **Citation:** (2007) 2 SCC 521
- **Key Issue:** Director's fiduciary duty to company
- **Verdict:** Directors must act in company's interest, not personal benefit
- **Impact:** Corporate governance and accountability
- **Real-life Example:** Director cannot use company funds for personal use or favor relatives unfairly

47. Vodafone International v. Union of India (2012)

- **Citation:** (2012) 6 SCC 613
- **Key Issue:** Tax liability on share acquisition
- **Verdict:** Cannot impose tax retrospectively on past transactions
- **Impact:** Investor protection; predictable taxation
- **Real-life Example:** Company cannot be taxed retroactively on business decision made years ago

48. Satyam Computer Services v. Registrar of Companies (2009)

- **Citation:** (2009) 6 SCC 733
- **Key Issue:** Fraud and misrepresentation in corporate disclosures
- **Verdict:** Company must disclose true financial information
- **Impact:** Investor protection through corporate transparency
- **Real-life Example:** Company cannot hide debt or losses to boost stock price

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Environmental Law Cases

49. Vellore Citizens Welfare Forum v. Union of India (1996)

- **Citation:** AIR 1996 SC 2715
- **Key Issue:** Polluter pays principle and environmental protection
- **Verdict:** Industries causing pollution must pay for cleanup and compensation

- **Impact:** Environmental accountability and protection
- **Real-life Example:** Factory that pollutes river must clean it and compensate affected people

50. T.N. Godavarman v. Union of India (1997)

- **Citation:** AIR 1997 SC 1228
- **Key Issue:** Forest conservation and public interest
- **Verdict:** Forests are national treasure; cannot be destroyed for commercial use
- **Impact:** Environmental protection through public interest litigation
- **Real-life Example:** Cannot cut forests for building mall; forests protected for environment

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Property Law Cases

51. Hemamala v. Seshan (2003)

- **Citation:** (2003) 4 SCC 204
- **Key Issue:** Fraudulent transfer of property
- **Verdict:** Property transfer obtained through fraud can be cancelled
- **Impact:** Protection against property fraud
- **Real-life Example:** If property deed is forged or obtained through deception, it can be set aside

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Key Principles Established

Doctrine of Basic Structure

- Government cannot amend Constitution to destroy basic features
- Example: Right to vote, equality, freedom of speech cannot be removed

Strict Liability in Hazardous Industries

- Industries with dangerous materials are absolutely liable for harm
- Example: Chemical plant causing leak = full liability regardless of precautions

Polluter Pays Principle

- Entity causing pollution must pay for cleanup and compensation
- Example: Factory polluting river = must clean + pay damages

Public Interest Litigation (PIL)

- Any citizen can move court for social welfare
- Example: Environmental activist can sue for protecting forests

Doctrine of Legitimate Expectations

- Government cannot arbitrarily change established policies
- Example: Government promise of pension cannot be suddenly withdrawn

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Summary Table: Case Laws by Area

Area	Key Cases	Main Protection
Criminal	Selvi, Shreya Singhal	Right to privacy, free speech
Civil	M.C. Mehta	Strict liability, environmental protection
Constitutional	S.P. Gupta	Public interest, democratic rights
Family	Joseph Shine, Navtej Singh Johar	Gender equality, LGBTQ+ rights
Labour	Workmen v. Raidrug	Union rights, minimum wages
Corporate	Shrinivas	Director accountability
Environmental	Vellore Citizens	Polluter pays principle
Property	Hemamala	Protection from fraud

Note: This database reflects Indian case law as of 2026. Cases are landmark decisions that have shaped Indian legal interpretation. Always consult qualified lawyer for specific legal advice.